

Court No. - 21

Case :- WRIT - C No. - 17037 of 2022

Petitioner :- Arif Khan

Respondent :- The Managing Director And 2 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Sameer Jain,J.

No urgency.

List in July, 2022, as fresh.

When the matter is listed next, name of Sri Rajesh Yadav, be shown as counsel for the respondents.

(Sameer Jain,J.) (Manoj Kumar Gupta,J.)

Order Date :- 15.6.2022

Vikram

Court No. - 3

Case :- WRIT - C No. - 17037 of 2022

Petitioner :- Arif Khan

Respondent :- The Managing Director And 2 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Rakesh Kumar Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Pranjal Mehrotra, learned counsel for the respondents.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorri quashing the impugned Provisional Assessment Notice dated 07.05.2022 issued by respondent no. 2 (Annexure No.2)

(ii) Issue a writ order or direction in the nature of mandamus commanding the respondent authorities not to adopt any coercive measure against petitioner in pursuance to impugned provisional Assessment Notice dated 7.5.2022 issued by respondent no.2 (Annexure No.2)"

Sri Pranjal Mehrotra, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 4.8.2022

T.S.